

HOUSE No. 5451

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, May 26, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the joint petition (accompanied by bill, House, No. 5378) of Mark D. Sylvia and Kelly A. Dooner (by vote of the town) that the town of Marion be authorized to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises in said town, reports recommending that the accompanying bill (House, No. 5451) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Marion to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Marion may grant an additional license for the sale of all
3 alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to
4 C & J Sull LLC, d/b/a J. Sull Wine, located at 119 Wareham Road, Unit 105, in the town of
5 Marion. The license granted pursuant to this section shall be subject to all of said chapter 138
6 except said section 17.

7 (b) The licensing authority shall not approve the transfer of a license granted under this
8 section to any other location, but it may grant the license to a new applicant at the same location
9 if the applicant files with the licensing authority a letter from the department of revenue and a
10 letter from the department of unemployment assistance indicating that the license is in good
11 standing with those departments and that all applicable taxes, fees and contributions have been
12 paid.

13 (c) If the licensee terminates or fails to renew a license granted under this section or any
14 such license is cancelled, revoked or no longer in use, it shall be returned physically, with all of
15 the legal rights, privileges and restrictions pertaining thereto, to the licensing authority which
16 may, within 3 years after such return, then grant the license to a new applicant at the same
17 location and under the same conditions as specified in this section, otherwise such license shall
18 dissolve.

19 (d) The license granted under this section shall be issued within 1 year after the effective
20 date of this act; provided, however, that a license originally granted within that time period may
21 be granted to a new applicant under subsections (b) and (c) thereafter.

22 SECTION 2. Upon issuance of the license authorized in section 1, the licensee shall
23 return physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the
24 licensing authority, its license for the sale of wine and malt beverages not to be drunk on the
25 premises under section 15 of chapter 138.

26 SECTION 3. This act shall take effect upon its passage.